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California Legislature tackles food chemicals, facial recognition, transgender kids and more

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The Legislature is back this week from spring recess and already things are getting busy.

CalMatters' Julie Cart reports that a bill that would outlaw five chemicals in food products passed the Assembly health committee Tuesday after a robust debate — and a little snacking.

The so-called Skittles Bill prompted both a freewheeling discussion of beloved candies and confections — the author, Assemblymember Jesse Gabriel, produced a package of the colorful snack to share — and a serious analysis of the chemicals that go into producing the color, taste and texture of popular foods.

Among the targeted chemicals is red dye No. 3, which the European Union banned in food products. The U.S. Food and Drug Administration outlawed its use in cosmetics 1990 but has not done so for food. Many companies have reformulated their products to comply with EU food safety standards, and the candy that Gabriel, a Woodland Hills Democrat, passed around came courtesy of friends who purchased them in Europe.

Synthetic dyes in food were found in a 2021 California study to have neurobehavioral impacts on children. The state health department on Tuesday held a hearing to consider a petition to ban some of the chemicals.

The other additives named in the bill are brominated vegetable oil, potassium bromate, propylparaben, and titanium dioxide. Gabriel said the bill does not seek to ban the chemicals outright but intends to spur manufacturers to use alternative ingredients, which he says can be cheaper.

* Gabriel: "All have a documented risk of harm. Many major brands have moved away from using these chemicals. We are very far behind the rest of the world in protecting our young people."

A variety of food and beverage companies oppose the bill, challenging the science the legislation relies on and saying that all of the chemicals have been vetted for consumer safety.

* Brendan Flanagan, senior director of state affairs for the Consumer Brands Association: "Food safety is of paramount concern to our members. We believe the current regulatory environment provides sufficient regulatory oversight."

Here's the latest on some other notable bills:

* Facial recognition: Also on Tuesday, the Assembly public safety committee approved the proposal by Assemblymember Phil Ting to limit the use of facial recognition technology by police. The San Francisco Democrat's bill would disallow issuing search and arrest warrants based only on a facial recognition match and would require law enforcement agencies to publish written policies detailing their use of the technology. Several racial and reproductive justice groups oppose the bill. ACLU California Action argues that it is a "wolf in sheep's clothing" and that the bill fails "to meaningfully limit the dangerous sharing of information with other agencies."

* Transgender students: On Monday, the Assembly Education Committee said it will not set a hearing for a bill that would have required teachers to notify parents if their child is transgender, essentially killing the legislation that Republican Assemblymembers Bill Essayli from Riverside and James Gallagher from Chico authored. The committee chairperson, Democratic Assemblymember Al Muratsuchi from Torrance, called the bill "bad policy" and said that a hearing would "potentially provide a forum for increasingly hateful rhetoric targeting LGBTQ youth." In a statement, Gallagher said the move was "sad, but not surprising."

CalMatters events: We're hosting more public events this year, starting with an April 18 discussion in our downtown Sacramento offices that will focus on the debate over early dyslexia screening. Read more from our engagement team and check out our calendar and sign up today.

For the record: The item in Tuesday's newsletter about Lt. Gov. Eleni Kounalakis incorrectly stated that Jerry Brown once served as lieutenant governor.

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